

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

January 24, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Collins, Dr. Rinne, Mr. Pierson, Mr. Spiker and Mr. Valdez. Absent: Ms. Ash. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Brown moved to approve Consent Agenda items, seconded by Mr. Pierson. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on January 10, 2011. Motion (per Consent Agenda) carried.

[CA] Minutes from Vouchers Meeting of the Governing Body on January 18, 2011. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services, and vacated Council Chambers. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

"An Ordinance amending Section 2.04.060, Meetings of the Governing Body, of Chapter 2.04, Mayor and City Council, of Title 2, Administration and Personnel, of the City of Cheyenne Code." Reporting for Finance Committee, Mr. Valdez moved to approve on third and final reading, seconded by Mr. Brown. Upon inquiry, City Treasurer Barb Dorr advised her department has not received any phone calls or inquiries from the public or vendors regarding the ordinance, which will change the voucher approval/payment schedule. Motion carried. Voting "yes" – all members of the governing body present. (#3912)

An Ordinance amending Section 9.16.100 (B), Open House Assembly, of Chapter 9.16, Offenses By or Against Minors, of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming, pertaining to the definition of 'Adult' -- referred to Public Services Committee (sponsor - Ms. Broyles).

“A Resolution designating the Sundays during 2011 that annual liquor licensees may extend dispensing room hours of operation for sales until 2:00 a.m. the following day.” Bryan Grzegorzcyk, President, Laramie County Liquor Dealers Association, spoke in favor of the resolution and provided information about the Association; community programs supported by Association members through fund-raising efforts, and the Association’s support of the Police Department’s D.U.I. and Underage Drinking Task Force. He noted that local bar owners have purchased approximately 1,500 taxi rides for its patrons to assist with responsible and safe driving. Jon Coverdale, Crown Bar, also spoke in favor of the resolution. Reporting for Finance Committee, Mr. Valdez stated there was no recommendation on the item from the Committee. Mr. Valdez moved to adopt, seconded by Mr. Collins. Upon inquiry regarding past approval of similar resolutions, City Clerk Carol Intlekofer advised that, to the best of her recollection, resolutions for the four Sundays had been approved annually since the mid-1980s, with the possible exception of date changes. Discussion followed and included state statute wording providing that the licensing authority “may” (not “shall”) approve the four Sundays request, and that approval of the extended hours would add approximately 16 additional hours of operation during 2011 that licensees could, if they chose to do so, remain open on the four Sundays until 2:00 a.m. the following day. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Broyles, Mr. Pierson and Mr. Spiker voting “no”. (#5255)

“A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Norris Viaduct Addition, First Filing, a resubdivision of all or portions of Blocks 607, 614, 615, 666, 667, 668, 669 and vacation of streets and alleys within said Blocks of South Cheyenne Addition, Cheyenne, Wyoming (located east of Morrie Avenue, being portions of Logan Avenue, 5th Street and Campstool Road).” Reporting for Public Services Committee, Mr. Collins moved to adopt with staff recommendations #1 and 2 and Planning Commission condition #3, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present. (#5256)

[CA] “A Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Norris Viaduct Addition, Second Filing, a replat of a portion of Blocks 488, 546, 548 and all of Block 547, Original City, Cheyenne, Wyoming (located southwest of and adjacent to Nationway, east of Dunn Avenue).” Motion (per Consent Agenda) carried. (#5257)

[CA] “A Resolution re-appropriating the Fiscal Year 2011 budget of the City of Cheyenne according to the provisions of W.S. 16-4-112 & 16-4-113” -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] “A Resolution authorizing a street name change from Logan Avenue to Campbell Avenue for the portion of the street originally platted in Kelley’s Addition as Fairview Avenue and later known as Logan Avenue, located between East 9th Street and East 10th Street, located in Kelley’s Addition to the City of Cheyenne, Laramie County, Wyoming” -- referred to Public Services Committee (sponsor - Mr. Valdez).

Preliminary Plat for Granite Hills Subdivision, a replat of a portion of Tracts 7 and 10, Dell Range Addition, 2nd Filing, Cheyenne, Wyoming (located north of and adjacent to Carla Drive, between Ridge Road and College Drive). Mr. Collins moved to acknowledge receipt with

staff recommendations #1 through 3 and #5 through 7, seconded by Mr. Brown. Upon inquiry regarding any proposed parking restrictions the developer may place on campers, trailers, boats and recreational vehicles, John Steil, Steil Surveying Services, agent for the developer, indicated either by signage or covenants the parking of these types of vehicles will not be allowed. Upon further inquiry whether there will be a development wide covenant prohibiting parking of recreational type vehicles, Dan Montgomery, developer, advised it is his intent to prohibit or restrict parking of these types of vehicles in the high density residential areas. It was clarified that staff and the developer have agreed that a 20 ft. pedestrian easement, previously proposed as an addition to staff recommendation #4, was not included in the staff recommendations noted in the motion. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center for Transit Division bus service for Stride clients -- referred to Finance Committee.

[CA] Volleyball Officiating Agreement between the City of Cheyenne, Recreation Division, and Officials for Fun Club for adult City league volleyball officiating services -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Fire and Rescue Department, and Laramie County Community College for the sponsorship of one student per calendar year in the Paramedic Program offered at Laramie County Community College -- referred to Finance Committee.

[CA] Cooperative Agreement between the City of Cheyenne and the State of Wyoming, Department of Environmental Quality, to develop a water quality remediation plan for Lake Minnehaha in Holliday Park (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5496 between the City of Cheyenne, Engineering Department, and Ayers Associates for additional design services for the East Pershing Boulevard Reconstruction Project (Phase IV) (2003-2006, 2007-2010 1% Sales Tax, Board of Public Utilities, Federal Highway Administration funds) -- referred to Finance Committee.

[CA] Consideration of Bid #M-5-11 for furnishing and installing one new pool filter, and the option to furnish and install a Hanovia UV Pool Water Purification System for the Lions Park Municipal Pool (2003-2006 1% Sales Tax). Motion (per Consent Agenda) carried (pool filter only - amount not to exceed \$36,880.00).

[CA] Consideration of Bid #R-7-11 for furnishing one ten yard dump truck with snow plow, spreader, and tarpaulin for the Street & Alley Division (2007-2010 1% Sales Tax. Motion (per Consent Agenda) carried (amount not to exceed \$195,392.00).

Consideration of Bid #R-17-11 for furnishing one new Demo Fire Truck and Small Equipment for the City of Cheyenne Fire & Rescue Dept. (1% Specific Purpose Sales & Use Tax). Reporting for Finance Committee, Mr. Valdez stated there was no recommendation on the item from the Committee. Mr. Brown moved to approve the bid from Front Range Fire of

Frederick, CO in the amount of \$467,821.00, seconded by Mr. Allen. Chief Jim Martin, Cheyenne Fire & Rescue Department, provided information on the current fire truck (1998 Pierce Quantum) to be replaced; age of other backup units; other bids received; bid specifications, and warranty information submitted with bids. Discussion followed and included: Specifications and warranty requirements set forth in the bid document; length of warranty (frame) coverage (50 years) requested in bid specifications; use of the engine being replaced after removal from front line service; lower bid received relative to meeting bid specifications; bid document wording regarding consideration of the time of truck delivery; lowest bid received (\$437,432.00) vs. proposed recommended bidder; bidding process, and age, life expectancy, usage and maintenance costs for current and reserve engines in use. Throughout discussion Chief Martin provided information on plans for extending the life of the current fire truck after retirement from front line service; frame warranty; Fire and Rescue Apparatus Committee review of bids received, staff members comprising the Committee and the Committee's recommendation to acquire a 2011 Pierce Arrow XT "Demo" engine; importance of delivery date consideration due to maintenance costs incurred for the current truck; differences in truck models, capabilities, vehicle frame warranty and time of delivery relative to bid specifications and bids received, and life expectancy and use of current and reserve fleet engines. Upon inquiry, Jim Elias, Director of Public Works, stated he was unsure whether any frame failures on fire engines have occurred, and John Fox, Division Chief of Operations, Fire and Rescue Department, explained bidders' "checked-off" boxes indicating areas of bid specification compliance on forms submitted with their bid, and importance of frame warranty coverage that doesn't expire when an engine is retired from the front line and the engine is put to other fleet use. Discussion continued on a 20 vs. 50 year frame warranty; type of fire trucks utilized; proximity of bidders' dealer service centers to Cheyenne; consideration of delivery time frame during bid evaluation process; bidding procedures, and concern with lowest bid received vs. proposed recommended bidder. During discussion on frame warranty coverage, Duane Dusett, Front Range Fire, explained the 50 year warranty provided by Front Range's bid has been in place since stability frame changes were made to trucks for better stability and durability. In response to a procedural question, City Attorney Dan White advised if acceptance of the recommended bid is rejected, ideally it would be best to reject all bids and re-bid. It was confirmed the bid for the Pierce Arrow XT from Front Range Fire was the only vendor that met all bid specifications. Mr. White expressed concerns with proceeding with acceptance of a bid from any other vendor that did not meet specifications. Upon inquiry regarding when it is decided to place a unit in reserves, Chief Martin advised it is based on maintenance concerns, expenses, and life of the vehicle, and explained the department's fleet replacement plan. Upon inquiry, Mr. Elias indicated any time the City can standardize fleet equipment it may save costs but each department should determine what type of unit and equipment they need, and Chief Martin advised bid specifications were developed to be as general as possible and that past bid documents were used as a guideline. Chief Martin further discussed warranty time frame; matching State Land and Investment Board (SLIB) funding deadline connected with the purchase; recommendation to accept the proposed bid involving a heavier engine, transmission and frame; different components offered by truck manufacturers, and estimated time frame if re-bidding of the engine is conducted. Upon query, Rudy Apodaca, Director of Purchasing, read bid document wording regarding acceptance of the lowest bid in the sole discretion of the governing body. Pursuant to inquiry regarding the time frame for utilizing SLIB funds, Mayor Kaysen recessed the meeting for 15 minutes to contact the Grants Manager regarding the deadline. Mayor Kaysen reconvened the meeting at 7:45 p.m. and advised communication with the Grants Manager was unable to be made. Mr. Pierson moved to postpone to Feb. 14, 2011, seconded by Mr. Spiker. Mr. Dusett advised the demo truck bid by Front Range Fire has extra features that weren't required in bid specifications and if the motion to accept the bid is postponed, it's possible that the demo truck could be moved out or sold to someone else and

would no longer be available. Discussion followed on the postponement with regard to receipt of information involving the SLIB funding time frame. Mr. Pierson withdrew his motion to postpone with concurrence by Mr. Spiker as second to the motion. As there were no objections raised by other member of the governing body, Mayor Kaysen announced the motion to postpone was being withdrawn. Dr. Rinne moved to amend the main motion to reflect approval would be contingent upon the availability of SLIB funds, seconded by Ms. Broyles. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended to approve the bid submitted by Front Range Fire for the Pierce Arrow XT demo truck in the amount of \$467,821.00 carried. Voting “yes” – all members of the governing body present with the exception of Mr. Spiker voting “no”.

[CA] Consideration of Bid #R-16-11 for furnishing two new packer trucks for the Sanitation Division (Solid Waste Equipment Lease/Purchase fund). Motion (per Consent Agenda) carried (total amount not to exceed \$259,632.00).

[CA] Consideration of Bid #R-18-11 for furnishing twelve new 2011 Police vehicles from Spradley Barr Motors, Cheyenne, Wyoming, for the Police Department (2007-2010 1% Sales Tax) -- referred to Finance Committee.

Appointment of Timothy Morton to the Greenway Advisory Committee, and Betsy Putnam to the Laramie County Juvenile Services Joint Powers Board. Mr. Brown moved to approve, seconded by Mr. Valdez. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Re-appointment of Leda Pojman to the Housing and Community Development Advisory Council. Mr. Valdez moved to approve, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Announcement was made of the Appointment of Katherine Palmer, Carol Wurdemann, Ted Gertsch and Leland G. Clabots to the Housing and Community Development Advisory Council; Ray Fertig, Jr. to the Building Code Board of Appeals; Keith C. Eldred to the Board of Adjustment, and Robin Zimmer to the Public Transit Advisory Board, to be confirmed February 14, 2011.

Announcement was made of the Re-appointment of Gene Maione to the Board of Adjustment, to be confirmed February 14, 2011.

Announcement was made of a Public Hearing to be held February 14, 2011 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, for a transfer of ownership for a retail liquor license application filed with the City Clerk’s Office for CJM Hospitality, LLC d/b/a Hitching Post Inn, 1600 West Lincolnway, Cheyenne, Wyoming. (License currently held by Mantiff Cheyenne Hospitality, LLC d/b/a Ramada Inn Hitching Post Inn, 1600 West Lincolnway, Cheyenne, Wyoming.)

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:59 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
February 7, 2011